

I.T AA 2008 - Information Technology
(Amendment means change/modification) Act, 2008

Before it was IT A 2000

also we have BNS - Bhartiya Nyaya Sanhita, 2023

{ Section 43 - Penalty and Compensation for damage to computer, computer system, etc. }

any person who do any work with your computer without your permission if he access , unauthorized or secure access with login attempt or download / copy / extract any data
removable device access , anyhow try to install malware , damage your system , data
or any disruption, malfunction, change your password of system , network, or he take someone
advantage of someone , do tempering , manipulation , of your computer or data , or try to destroy
information inside your system or do changes ,

like imagine person A and person B and person C who have a computer person A tell Person B that go
and do tempering , change , delete or destroy and data of person C, or change source code of software
any thing that will damage /delete app , data of person C Computer if someone do this or kisi se karwata
he

Shall be liable to pay damages by way of Compensation to the person so affected.
Compensation means penalty = money

{ Section 43 A - Compensation for failure to protect data }

Imagine a telecom company like airtel , when you buy a SIM card you give your information , your name ,
father name , DOB
Address , Adhar card all these are confidential means personal information. this is the example of airtel it
can be anything
like bank or any other company etc. and they show any negligence to protect that data.
imagine any security breach why it happend? because they do not follow / implement reasonable security
practices and procedures
whenever this happens section 43 A says any corporate body any company, who's ever person's data is
leaked they have to pay compensation = money

mostly companies denied data breaches , airtel
in India citizens take it lightly

(OFFENCES)

{ Section 65 - Tempering with computer sources documents }

anyone intentionally with himself or with help of other destroy/alter any computer source code , shall be
punishable with imprisonment up to three years or with fine which may extend to two lakh rupees, or with
both

{ Section 66 - Computer-related offences }

this section is related to sec 43 here you do not give access the access is taken fraudulently but in section 43 you have given access to someone, and do all things which are written in sec 43 shall be punishable with imprisonment up to three years or with fine which may extend to two five lakh rupees, or with both

{ Section 66 A - Punishment for sending offensive messages through communication service, etc }

imagine your Instagram account, a person again and again sending you message , giving threat , giving you bad words , insulting you or telling you any other thing (Ulta siddha bol raha he) or any person intentionally spreading fake news using PC or mobile device. it can be anything including attachment in text, image , audio , video, any electronic record

imagine a person mail you and tell that "from here i know or got to know this thing about you" its just fake he just want to spread inconvenience, mislead , deceive / dhoka dena he. shall be punishable with imprisonment for a term which may extend to three years and with fine

{ Section 66 B - Punishment for dishonestly receiving stolen computer resource or communication device }

imagine a person or you go to shop to buy a smartphone and the phone was stolen but you don't you then this section will not used.

but you go to shop to buy any electronic device , laptop , mobile, PC, communication device and you know that this item is stolen item

the scammer/culprit says that this item is stolen that's why i am giving you in very low cost , incase somehow it got traced/tracked to you

shall be punishable with imprisonment of either description for a term which may extend to three years or with fine which may extend to rupees one lakh, or with both

{ Section 66 C - Punishment for identity theft }

imagine a person i try to find some info like name , photo and create a fake account/ID it can be anywhere like Instagram , Facebook , and that person somehow got to know that yes i have created fake ID .

#I just have theft identity not done anything more

shall be punishable with imprisonment of either description for a term which may extend to three years and shall also liable to fine which may with fine which may extend to rupees one lakh

{ Section 66 D - Punishment for cheating by personation by using computer resource }

In the above section I or someone just done identity theft but in this section after identity theft I impersonated someone's identity and cheated someone or take money on behalf of anyone's name so this and above section will be implemented on me

shall be punishable with imprisonment of either description for a term which may extend to three years and shall also liable to fine which may with fine which may extend to rupees one lakh

{ Section 66 E - Punishment for violation of privacy }

imagine any human either male or female without his or her consent capture, publish, transmit means sending visual image to someone , his nude video or photo ,

shall be punished with imprisonment which may extend to three years or with fine not exceeding two lakh rupees, or with both.

{ Section 66 F - Punishment for cyber terrorism }

(a) this mean any person with an intent threaten of our country the unity, integrity, security or sovereignty imagine you have a PC and he hacked or try to get access/break computer resource without authorization or (Exceeding authorized access)

he accessed/enter the system, install virus , this types of conduct injure any person or destruction of property, damaging essential services or supplies (which are essential to life) like for example | Critical information infrastructure , power grids , nuclear power plants , banking , hospital servers

(b) any person knowingly or intentionally try to penetrate any computer system without any authorization and steal any information/data or database

example: a government website like MOHA anyone try to access the data of MOHA any restricted information. and he knows that using that info our country's integrity, security will be in danger

like a confidential deal between INDIA AND RUSSIA is signed and normally some deals are not shown and any person try to access MOHA servers and access these restricted documents and try to publish that information. that other our friendly countries like USA and USA Is not friend of Russia but it is friend of india so try to disturb relations using that documents or even try to plan these things. so whoever commits or conspires to commit cyber terrorism shall be punishable with imprisonment which may extend to imprisonment for life.

{ Section 67 - Punishment for publishing or transmitting obscene material in electronic form }

anything content try to publish or transmit in electronic form who ever is seeing that is deprave means morally feel bad that this thing is morally not right , who ever sees, read, listen and after seeing that he feels morally bad and corrupt people's mind means destroy mind using those content

Punishment:

First conviction: up to 3 years imprisonment and fine up to 5 lakh

Second/subsequent conviction: up to 5 years imprisonment and fine up to 10 lakh

{ Section 67 B - Punishment for publishing or transmitting of material depicting children in sexually explicit act, etc., in electronic form }

(a) any person publish , transmit CP in groups

(b) any person make text , digital image or collect , find , browse , download , promote , exchange , distribute , advertise , related to CP

(c) any person cultivates (seek de raha he) or forces to make online relationship with other child which will be sexual relationship

(d) abuse child online

(e) engage in sexual act and record that scene in

(f) Punishment:

First conviction: up to 5 years imprisonment and fine up to 10 lakh

Second/subsequent conviction: up to 7 years imprisonment and fine up to 10 lakh

#Children means less than 18 years

{ Section 67 C - Preservation and retention of information by intermediaries }

Imagine 2 people or 1. Government and 2. Private Party and in between there is an intermediary and any deal will happen between these 2 parties it will happen through this intermediary and any type of document and this intermediary will cannot preserve or retain

Why it's not allowed? Imagine if any confidential information which is shared between government and private agency they can try blackmail that's why (agar itne time se Zada apne pass ye documents nahi rakh sakhta he. if he keeps) shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

(Other Important Sections)

{Section 69 - Powers to issue directions for interception or monitoring or decryption of any information through any computer resources}

(1) Do you know about call tapping? Listening live phone conversations, this also has some Rules and regulations which come under sec 69, sec 69 gives permission/enables state government, central government or any officer of it, that whenever it comes to our country, friendly foreign countries, defence of our country.

Whenever in these things they have to do investigations. they can intercept, monitor, decrypt our computer devices E.g.: call tapping

(2) Any law is made should be followed properly, according to law

(3) Imagine a person and we have doubt / suspicious that he is doing such activity that goes against our country's integrity, security or sovereignty, what we will do start monitoring, intercepting calls and if any agency is monitoring him and when that agency will call him he has to come and whichever thing they were monitoring eg computer device, he has to give full access and stored information on device

If someone/person who fails who will not do this. shall be punished with an imprisonment for a term which may extend to seven years and shall also be liable to fine.

Imagine IB - Intelligence Bureau got intel person A is doing some activity that is against our country this section gives power to IB that he can intercept, monitor person A device, in case during interception and monitoring they got to know yes he is doing something or they think they do not get more info, IB just got an idea that yes what he is doing. but not exactly what he is doing

IB can call Person A and he has to come

any device he uses, mobile, computer, Person A has to give access to IB any information stored in that device even if it's encrypted he will decrypt

{ Section 69 A - Power to issue directions for blocking for public access of any information through any computer resources }

(1) any officer of central gov authorized for this , imagine a website run in our country and this website spread any content/material. that our country , friendly countries , 28 states in our country anyway damage our country's integrity, security or sovereignty , defence. the officer can send/issue letter to MEIT (Ministry of Electronic and information technology) that ban the access of this site to public. any web which damage our country integrity, security or sovereignty , defence. a special officer can direct in writing with all reasons like spreading fake news that make internal disturbance.

(2) anyway prescribed in law. in that way block that access

(3) Example: a private company website and they don't block and down the access of web in India

if someone fails / not follow this shall be punished with an imprisonment for a term which may extend to seven years and shall also be liable to fine.

{ Section 69 B - Power to authorize to monitor and collect traffic data or information through any computer resource for Cyber Security }

(1) this section 69 B gives power to central government of our country. that at anytime anything happens any intrusion happens, hacking into gov systems or virus spread, so official gazette Gazette of India ek official government journal hai jo Government of India publish karti hai. Isme laws, rules, regulations, notifications, appointments, orders, authorizations etc. officially publish hote hain.

(Agar Govt. Section 69B ke under ek agency ko authorize karti hai data monitor karne ke liye → woh Gazette of India me notification issue karegi.) central gov website gazette of India here it will give notification and tell any gov agency that collect all data , all traffic data whatever internet we are using. any information that is generated , transmitted , received or stored on any computer resource so government has power

i simple words if government wants they can keep surveillance that what we surf what type of traffic is generated in our network, what we are sending , what we are receiving

official gazette of India there gov of India has to mention with all reasons that this is for enhancement of cyber security or any type of intrusion happened like hacking or anyone tried to penetrate government systems at that time it can happen

(2) imagine Person A and when Intelligence agency has keep surveillance on person A and for any reason / issue the surveillance is conducted on person A , that are transmitted on my device , or i am searching for it, or stored on my device , any agency that is authorized by GOV they can call person A and person A have to give full access of computer whether it is online or physical

(3) anything that is prescribed in gazette of India that will be followed to collect and monitor data
Jo bhi monitoring / collection hoga, woh Gazette of India me prescribed rules ke according hoga.

(4) if person A do not give access then shall be punished with an imprisonment for a term which may extend to three years and shall also be liable to fine.

depends that it will intercept whole country data or not like if crime is happening from specific geographical area then it will collect only that specific area

{ Section 70 - Protected Systems }

(1) in this section any government can declare the notification in official gazette that any computer system

that can tell that our country's critical information infrastructure as a protected system it can be anything like for example , power grids , nuclear power plants etc. if this gets hacked / destroy it can affect national security , economy , public health or safety

(2) any critical information infrastructure are protected system. our government can tell through notification or official gazette that this is protected system like nuclear power plant

(3) and any person try to access , manipulate , infiltrate this protected systems, shall be punishable with imprisonment of either description for a term which may extend to ten years and shall also liable to fine

(4) the central government time to time apply and make information security policies/practices to these protect systems. which government has assigned CERT-IN to DO these things pen test time to time to find bugs in CII

{ Section 70 A - National Nodal Agency }

(1) the national nodal agency in section 70 A the central gov can publish notification in official gazette that can tell any organization that this particular CII have you are national nodal agency like CERT in the government tell cert-in that any CII has in our country you are nodal agency for that and the work of nodal agency is to go research and develop things that our CII can be protected from threats and what ever they have manner / in functions to perform duties all will be according to sub section 1

Section 70A allows the Central Government to appoint a nodal agency like CERT-In to safeguard Critical Information Infrastructure of the country.

{ Section 70 B - CERT-IN to serve as national agency for incident response }

its work is to responds the cyber incidents

Affiliation: Ministry of Electronics and Information Technology (MeitY)

Role: CERT-In serves as the national nodal agency for responding to cybersecurity incidents in India. It operates 24x7 to provide early warning, response, and support during cyber attacks or vulnerabilities affecting the country's cyberspace. CERT-In issues alerts, advisories, and guidelines to enhance cybersecurity awareness and resilience across various sectors

{ Section 71 - Penalty for misrepresentation }

imagine you have a company and you have to take a ISO certificate of your company and to take this certification it has some guidelines and you are not following guidelines but you mentioned in your documents that YES i am following all these guidelines / laws of ISO and in checking they got to know that you are not following you just want certificate that's why you mispresent

shall be punished with imprisonment for a term which may extend to two years or with fine which may extend to two one lakh rupees, or with both.

{ Section 72 - Breach of confidentiality and privacy }

imagine any person and you have share any electronic record like book register , information document and he share/discard that to 3rd person without your consent it comes under Breach of confidentiality and privacy

shall be punished with imprisonment for a term which may extend to two years or with fine which may extend to two one lakh rupees, or with both.

{ Section 72 A - Punishment for disclosure of information in breach of lawful contract }

imagine a contract done by an intermediary person. a lawful contract according to court and he provides any service

(aur usne samne wale person ke kuch personal info chura liye) he accessed any personal information and the intent was to harm , to loss , or for his benefit , without your consent . breached/break this lawful contract in this situation the intermediary shall be punished with imprisonment for a term which may extend to three years or with fine which may extend to two five lakh rupees, or with both.

he disclose your information or when he make a lawful contract with you he also break that contract

{ Section 73 - Penalty for publishing electronic Signature Certificate false in certain particulars }

imagine any electronic signature certificate he is giving to other person but the main authority has not issued the certificate

means he is issuing a fake certificate

Example : giving fake ISO certified Cyber security certificate

here what i do i am giving a false information because in real it is not ISO certified
i just stamp it and tell that it is real

in this case shall be punished with imprisonment which may extend to two years or with fine which may extend two lakh rupees, or with both.

{ Section 74 - publication for fraudulent purpose }

same this section also came in the above section but here i also started publishing those certificates for any fraudulent or unlawful purpose

{ Section 75 - Act to apply for offence or contraventions committed outside India }

For example, if a person sitting in Malaysia commits a cybercrime such as fraud, hacking, or scam on a computer system or network located in India, then Section 75 will apply. In such cases, the offender can be prosecuted under Indian law.

The accused may be extradited to India for trial and punishment under the IT Act, or alternatively, the Malaysian authorities can take action against him based on India's request and international agreements.

in simple words :If a person sitting in Malaysia does a scam, fraud, or hacking on a computer in India, then Indian law (IT Act) will apply on him. After that, either:

He can be brought (extradited) to India for punishment, or
The Malaysian authorities can take action against him on India's request.

In simple words: Even if the crime happens outside India, if it affects computers inside India, Indian law will apply.

{ Section 76 - Confiscation }

any computer system , floppy , compact disks etc. are used to do crime so the court can give order under section 76 to Confiscation/custody (Capture it) officially
it can be anything/any accessories related to computer it can be seized according to law

{ Section 77 - Compensation, penalties, or confiscation not to interfere with other punishment }

Any compensation, penalties, or confiscation given under the IT Act will not stop other punishments from applying.

For example, if a person has already paid the penalty under Section 43 (like for damaging data, deleting files, or stealing information), but his act is also serious and comes under Section 66F (Cyber Terrorism), then it will not happen that only Section 43 applies and Section 66F is ignored. Both sections can be applied together.

This means that just because a person has paid fine or compensation, it does not protect him from jail or other punishments if his actions also break other sections of the law.

In short: Penalty is one thing, but if the crime is bigger, punishment under other sections will also apply at the same time.

{ Section 77 A - Compounding of Offences }

Section 77 A enable court to compound means if 2 things are being heavy so court usko Rahat de sakhti he but main ye he jo bhi uss person ne offence kiye he theek he wo india ke socio economy contitions ko affect nahi kar raha he aur wo child ya women ke liye nahi he agar in teen cheezo mein kiya he toh compounding nahi hoti he offences ke compounding matlab sare milake kuch rahaat ke diye aaisa nahi hota he fir aur ye court kahi baar khud nahi deti he , jo accused he wo ye bol sakhta he ke mere ko 5 alag alag offences ke andar meko punishment diye he toh please inko akkatha/mix kar ke koi ak mujhe punishment ke diye jaye lakin ye 3 cheeze nahi honi chiyen na toh 18 saal se kam wale baccho ke khilaaf kuch kiya he na toh ladies ke khilaaf aur na india ke socio economy ke khilaaf

The Section 77A of IT Act allows the court to compound offences, which means if a person has been given punishments in multiple offences, the court can provide some relief by combining them into one single punishment. However, this relief is not automatic; usually, the accused has to request the court for compounding. At the same time, there are three strict conditions where compounding is not allowed – if the offence is against India's socio-economic conditions, or against a child below 18 years, or against a woman. In all other cases, the court has the power to give relaxation by reducing the burden of multiple punishments.

{ Section 77 B - Offences with three years imprisonment to be cognizable }

which ever rules/law we have learned above which ever rules where 3 years of imprisonment can be bailable/release

Section 77B says that if any offence under the IT Act has punishment of up to three years, then that

offence is cognizable, which means police can register a case, investigate, and arrest without permission of court. At the same time, the offence is also bailable, which means the person has the right to come out of jail on bail. Examples are Section 66 for hacking or data theft, Section 66C for identity theft, Section 66D for cheating by personation, and Section 66E for publishing private images. All these offences have punishment of three years, so they are cognizable and bailable.

{ Section 79 A - Central Government to notify Examiner of electronic Evidence }

central government can call or send notification to take expert advice, who will be the examiner of electronic device means any electronic evidence which have kept in front of court

Section 79A says that the Central Government can send a notification to appoint an expert, who will be called the Examiner of Electronic Evidence. This examiner will give expert advice on any electronic evidence, like electronic records or devices, which are kept in front of the court.

{Section 84 B - Punishment for abetment Offences }

this sections says any person have abetment/encourage to any other person so who has abetment same charges will be apply

example anyone committed 66A

Section 84B says that if any person does abetment (means uksana or encourage) to another person for committing an offence under the IT Act, then the same charges and the same punishment will apply to the person who did the abetment also. For example, if someone abets another person to commit an offence under Section 66A, then both the person who committed the offence and the person who abetted will face the same punishment.

{Section 84 B - Punishment for abetment Offences }